

Before the
FEDERAL MARITIME COMMISSION

Washington, D.C. 20573

Docket No. 23-02

20230930-DK-BUTTERFLY-1, INC. F/K/A BED BATH & BEYOND INC. v.

ORIENT OVERSEAS CONTAINER LINE LIMITED AND OOCL (EUROPE) LIMITED

**JOINT MOTION TO FILE UNDER SEAL JOINT STATUS REPORT AND MOTION
FOR CONFIDENTIAL TREATMENT**

Pursuant to Rule 5 of the Federal Maritime Commission’s (the “Commission”) Rules of Practice and Procedure (the “Rules”), 46 C.F.R. Section 502.5, and the Protective Order entered by the Presiding Officer in this case on July 28, 2023, see Dkt. 20 (the “Protective Order”), Complainant 20230930-DK-Butterfly-1, Inc. f/k/a Bed Bath & Beyond Inc. (“Complainant”) and Respondents Orient Overseas Container Line Limited and OOCL (Europe) Limited (together, “Respondents” and, collectively with Complainant, the “Parties”), by and through their undersigned counsel, respectfully move for an order permitting the Parties to file under seal an unredacted copy of their “Joint Status Report and Motion for Confidential Treatment” (the “Joint Motion”), filed contemporaneously herewith, and to file a redacted copy of the Joint Motion on the public docket of this case.

The Parties recognize that, as set forth in the March 31, 2025 Order Denying Motions for Confidential Treatment, as a general matter “motions for confidentiality should not be marked confidential, as there is no confidential information contained within the motion and the public has a right to know why confidentiality was granted.” However, as detailed in the Joint Motion, despite the Parties’ diligent and collaborative efforts to resolve their dispute regarding confidential

designations, and efforts in limiting the quantity of redacted material, they were unable to reach an agreement on the designation of certain materials. The Joint Motion contains argument by Complainant against certain material sought to be maintained as confidential by the Respondents, and in doing so, quotes certain material in order to contextualize the argument for the Presiding Officer. Thus, the Joint Motion does contain limited information sought to be maintained as confidential by Respondents, and the Parties thus seek to file the Joint Motion under seal, with a redacted version of such material contained within the Joint Motion to be filed thereafter pursuant to the Rules.

For these reasons, good cause exists for the confidential treatment of the Joint Motion, as it contains information designated by Respondents as confidential and sets forth Complainant's reasons for challenging what it contends are overbroad or otherwise unnecessary confidentiality designations.

Pursuant to 46 C.F.R. Section 502.71(a), counsel for Complainant and counsel for Respondents have discussed the instant motion with each other in a good faith effort to determine whether there is any opposition to the relief sought and, if there is opposition, to narrow the areas of disagreement. The Parties each agree to the relief requested in this motion.

Accordingly, consistent with the requirements of the Protective Order in this case and for good cause shown, the Parties seek by the instant motion leave to file its Joint Motion under seal.

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Respectfully submitted,

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